

The Court sets the following schedule:

1. The parties must engage in a meet and confer regarding the FAC in person, by telephone or by video conference no later than March 18.
2. Defendants shall file and serve a declaration showing that the meet and confer occurred and addressing whether the parties' reached agreement on any of the issues no later than March 25.
3. Defendants shall file and serve an amended moving brief that includes the required table of contents and authorities by March 25.
4. Plaintiffs shall file and serve an amended opposition that is limited to 15 pages by March 25. Plaintiffs shall limit their amendments to shortening their arguments and shall not include new arguments in their brief.

12. 9:00 AM CASE NUMBER: MS5031

CASE NAME: PETITION OF: PARAQUAT CASES

***HEARING ON MOTION IN RE: QUASH DEFENDANT CHEVRON U.S.A.'S NOTICE OF SUBPOENA FOR PRODUCTION OF BUSINESS RECORDS TO THIRD PARTY**

FILED BY: RITZ, DR. BEATE

TENTATIVE RULING:

On February 19, 2026, Defendant Chevron U.S.A. Inc. withdrew the subject and filed a Notice of Withdraw of Subpoena with the court. This hearing is **vacated**. The case management conference scheduled for March 5, 2026 is confirmed. No appearance is required at the hearing on March 4, 2026.

13. 9:00 AM CASE NUMBER: MSC21-01391

CASE NAME: JFP-AG/SAN RAMON VS RM 15 SAFE CORP

HEARING ON SUMMARY MOTION FILED BY DEFENDANTS RM 15 SAFE CORP (RM 15) AND SAN RAMON HANNIBAL, LLC

FILED BY:

TENTATIVE RULING:

The Court continues the hearing on this motion to March 18, 2026 at 9:00 a.m., to be heard along with Plaintiffs' motion for summary judgment, or in the alternative, summary adjudication. No appearance is required at the March 4, 2026 hearing.

Discovery Law & Motion

14. 9:01 AM CASE NUMBER: MSC21-01215

CASE NAME: LYNETTA WESTBROOK VS SAN PABLO HEALTH

***HEARING ON MOTION FOR DISCOVERY COMPEL RESPONSES TO REQUEST FOR PRODUCTION OF DOCUMENTS AND THINGS (SET TWO) AS AGAINST PLAINTIFF, AS HEIR AND SII TO ALEX POLLARD, AND FOR MONETARY SANCTIONS**

FILED BY: SAN PABLO HEALTHCARE & WELLNESS CETNER LLC

TENTATIVE RULING:

This tentative ruling applies to lines 14, and 16 which are the two discovery motions filed by Defendant San Pablo Healthcare and Wellness Center LLC dba San Pablo Healthcare and Wellness Center ("Defendant") against Plaintiff Lynetta Westbrook ("Plaintiff") calendared for hearing on March 4, 2026. Because no timely oppositions to each of these motions were filed with the Court, each of these motions are **granted** in their entirety. No appearance is required on March 4, 2026.

Background

Defendant filed the following discovery motions:

1. September 8, 2025: Defendant's Motion to Compel Responses to Request for Production of Documents and Things (Set Two) as Against Plaintiff as Heir and Successor in Interest to Alex Pollard and for Monetary Sanctions in the amount of \$1,522.95 for reasonable costs and attorney's fees.
2. November 17, 2025 Motion for Orders 1) Deeming Admitted Truth of Facts as to Plaintiff and 2) Imposing Monetary Sanctions totaling \$1,772.95.

These two motions were supported by Notice, Memoranda of Points and Authorities, Separate Statement (where required for the Motion to Compel Further Responses), Declarations of Counsel Valerie A. Kraml, and proposed orders lodged with the Court. The proofs of service for each motion evidence service of each by e-mail to Plaintiff's Counsel of Record, Dawn M. Smith. No timely responses were received from Plaintiff.

Analyses

Pursuant to Cal. Code of Civ. Proc. § 1005(b), "all papers opposing a motion shall be filed with the court and copy served on each party at least nine court days... before the hearing." Nine court days before the hearing is February 17, 2026. No timely opposition was filed.

California Rules of Court, Rule 8.54(c) states, "A failure to oppose a motion may be deemed a consent to the granting of the motion."; see *Cravens v. State Bd. of Equalization* (1997) 52 Cal. App. 4th 253, 257; *Gwaduri v. I.N.S.* (9th Cir. 2004) 362 F.3d 1144, 1146 [Where a party fails to file timely opposition to a motion, it is "well-within" the court's discretion to determine that such failure is "tantamount to a concession that its position in the litigation was not substantially justified."] (citing *Weil v. Seltzer*, 873 F.2d 1453, 1459 (D.C. Cir. 1989) [holding that a party who fails to file an opposition to a motion is deemed to have waived opposition and may not be heard to complain.]; see also *Nazir v. United*